

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUPP007395: JACKSON MINSHALL A MINOR BY AND THROUGH HIS
GUARDIAN AD LITEM LYDIA MONROY, et al. vs VENTURA BEACH RV RESORT
INC**

09/02/2026 in Department 40

**Motion to Vacate Stipulation Regarding Neuropsychological Defense Medical Examination
of Minor Plaintiff**

Motion: Plaintiff's Motion to Vacate Stipulation Regarding Neuropsychological Defense Medical Examination of Minor Plaintiff (*opposed*)

Tentative Ruling:

Plaintiff's Motion to Vacate Stipulation Regarding Neuropsychological Defense Medical Examination of Minor Plaintiff is DENIED. Plaintiff failed to show that relief is appropriate due to excusable neglect and surprise, and there is no merit to Plaintiff's argument that the Court must make a finding of good cause before the parties can stipulate to a neuropsychological evaluation.

Notice to be provided by Plaintiff.

Background: This premises liability action arises from an incident that occurred on the afternoon of March 21, 2022, where Jackson Minshall ("Jackson"), a minor, was sadly struck by a truck while walking with his mother, Lydia Monroy ("Lydia"), to the playground located at an RV resort located in Ventura. Jackson sustained serious and permanent injuries. Lydia witnessed the truck run over Jackson. Jackson's father, Werner Minshall ("Werner"), immediately appeared at the scene and witnessed Jackson's injuries and suffering.

On March 29, 2023, Jackson, Lydia, and Werner (collectively the "Plaintiffs") filed their Complaint against Ventura Beach RV Resort, Inc. ("Defendant RV"), the owner and operator of the RV resort. The minor's claims against unnamed parties were separately settled.

On December 30, 2024, Plaintiffs Jackson and Lydia filed a First Amended Complaint ("FAC") against Defendant RV, pleading causes of action for: (1) negligence/premises liability by Plaintiff Jackson; and (2) negligent infliction of emotional distress by both Plaintiffs Lydia and Werner.

On June 25, 2026, the parties filed a Stipulation and Order Regarding Neuropsychological Defense Medical Examination of Minor Plaintiff.

On July 30, 2026, Plaintiff filed a Motion to Vacate Stipulation Regarding Neuropsychological Defense Examination of Minor Plaintiff.

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Grounds: Plaintiff Jackson Minshall, moves the Court for an order vacating the Stipulation Regarding Neuropsychological Defense Medical Examination of Minor entered into on or about June 15, 2026. The motion is made on the following grounds:

1. The Stipulation was entered into by Plaintiff's counsel while he was hospitalized and recovering from emergency surgery, rendering him incapacitated and unable to exercise sound professional judgment, constituting excusable neglect, mistake, and surprise within the meaning of Code of Civil Procedure section 473(b); and
2. The neuropsychological examination to which Plaintiff stipulated is not legally authorized absent an independent judicial finding of good cause and that the minor's mental condition is genuinely in controversy, as required by Code of Civil Procedure section 2032.320, and the Stipulation cannot substitute for that mandatory statutory predicate.

Plaintiff seeks to avoid a multi-day psychological testing battery that he asserts goes beyond the physical injury claims in this case, and for which the statutory predicate under Code of Civil Procedure section 2032.320 was never independently established by this Court.

Plaintiff's counsel, Mr. Brief, submits a declaration stating that he was hospitalized for a period of 3 weeks, and during that time, he communicated with counsel and agreed to the stipulation. He states he did not engage in the level of client consultation, legal research, and strategic evaluation that a decision of this nature requires and did not independently assess the statutory predicate and whether the examination was in the minor's best interest.

Defendant opposes and argues that Plaintiff's other attorneys were also involved in the negotiation, that Mr. Brief continued to negotiate the stipulation after he was discharged from the hospital, the stipulation was reached in lieu of Plaintiff filing Opposition to a pending motion to compel additional exams, and the stipulation is valid.

Discussion:

"Unless the court orders otherwise, the parties may by written stipulation modify the procedures provided by this title for any method of discovery permitted under Section 2019.010." (Code Civ. Proc., § 2016.030.)

"If any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court." (Code Civ. Proc., § 2032.310.)

"A stipulation 'is conclusive upon the parties, and the truth of the facts contained therein cannot be contradicted' unless permission is given to withdraw from the stipulation." (*Spindell v. State Bar* (1975) 13 Cal.3d 253, 260.)

"Of course, where a stipulation has been "entered into through inadvertence, excusable neglect, fraud, mistake of fact or law, where the facts stipulated have changed or there has been a change in the underlying conditions that could not have been anticipated, or where special circumstances

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exist rendering it unjust to enforce the stipulation,” a court may exercise its sound discretion and set aside the stipulation. [Citations.] But, “[when] there is no mistake but merely a lack of full knowledge of the facts, which ... is due to the failure of a party to exercise due diligence to ascertain them, there is no proper ground for relief.” [Citation.]’ [Citation].” (*Robinson v. Workers’ Comp. Appeals Bd.*(1987) 194 Cal.App.3d 784, 791.)

On June 25, 2026, a Stipulation and Order Regarding Neuropsychological Defense Medical Examination of Minor Plaintiff. Under this Stipulation and Order, a neuropsychological examination was to be conducted by Dr. Light using a specified list of measures for testing. The examination was to take place over no more than 4 days during the week of July 13, 2026. The Stipulation was signed by Garrett M. Brief for Plaintiffs and Joel Witzman for Defendant RV.

“In deciding whether counsel's error is excusable, this court looks to: (1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim. [Citations]. In examining the mistake or neglect, the court inquires whether ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276.)

Based on the information in the record, the Court finds that a reasonably prudent person under the same or similar circumstances would not have made the same error. Plaintiff had another attorney, Alex Morales who negotiated a stipulation regarding the examination and Mr. Brief, after discharge from his hospitalization, negotiated revisions of the stipulation, indicating his understanding of the implications of the stipulation. These negotiations and the ultimate stipulation were undertaken to avoid a pending motion. There was no excusable neglect.

“The terms “accident” and “surprise,” although not strictly synonymous, have, as used in legal practice, substantially the same meaning, as each is used to denote some condition or situation in which a party to a cause is unexpectedly placed, to his injury, without any default or negligence of his own [citation], which ordinary prudence could not have guarded against. [Citation].’ [Citations].” (*Kauffman v. De Mutiis* (1948) 31 Cal.2d 429, 432.)

Plaintiff’s counsel, Mr. Brief, asserts that he did not anticipate being hospitalized at the time Defendant’s motion was filed and the combination of the medical emergency and pressure to respond to the pending motion created surprise. However, as discussed above, the negotiations regarding this stipulation was occurring before and after Mr. Brief’s hospitalization. The Court finds no basis for a finding of surprise.

To the extent Plaintiff argues the Court must make an independent finding of good cause, the Court disagrees. Plaintiff and Defendant stipulated to the exam, and they were free to do so without involvement by the court. Plaintiff has not demonstrated that the exam is unwarranted or unduly invasive. It will span four days but will be for just a few hours each day to reduce the strain on the minor.

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Although minors are entitled to a level of judicial protection (see *Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603), said interests do not invalidate the stipulation entered into by Plaintiff's attorneys here.